

BEFORE THE COLORADO ENERGY AND CARBON MANAGEMENT COMMISSION

APPLICANT: Delaware Basin Resources, LP

RELIEF SOUGHT: Pooling

LEGAL DESCRIPTION: Township 5 North, Range 65 West, 6th P.M., Section 9: N/2, Weld County, Colorado

CAUSE CD NO. CD 2024-100121 ORDER NO. 700121

DATE OF ORDER: January 12, 2024

ORDER OF THE COMMISSION (POOLING)

The Commission FINDS: Applicant owns an interest in the Bone Spring common source of supply underlying the above unit; the owners have not agreed to pool voluntarily; and pooling is necessary to avoid the drilling of unnecessary wells, to protect correlative rights, and to prevent waste.

IT IS ORDERED that the interests in the unit are pooled. Each owner who has not agreed shall, within twenty (20) days of this Order, elect one of the following:

Election Option	Cash Bonus / Net Acre	Royalty
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(a) Participate (share of est. well cost \$3,400,000)	n/a	n/a
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(b) Cash bonus plus royalty	\$1,000	3/16
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(c) Higher royalty, lower bonus	\$200	1/5
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Owners who do not timely elect are deemed to have elected the lowest cash bonus option. Delaware Basin Resources, LP is designated Operator of the unit and is authorized to drill and operate the unit well.

DONE AND PERFORMED by order of the Commission.